

23NWCV01381 23NWCV01381

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Case Number: 23NWCV01381 Hearing Date: July 22, 2026 Dept: SED

WINSON INTERNATIONAL LLC V. HUMBERTO A. LINARES, ET AL.

CASE NO.: 23NWCV01381

HEARING: 07/22/2026 @

9:30 a.m.

#10

TENTATIVE ORDER

Plaintiff and Cross-Defendant

Winson International LLC's unopposed motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND. The Cross-Complaint as to Cross-Defendant Winson is DISMISSED WITH PREJUDICE.

Moving party to give notice.

Plaintiff and Cross-Defendant

Winson International LLC (Winson) moves for judgment on the pleadings (MJOP) as to the second and third causes of action of the Cross-Complaint filed by Defendants and Cross-Complainants Humberto A. Linares and Gabriela Mora Castillo (collectively, Cross-Complainants).

Background

On December 18, 2024,

Cross-Complainants filed a Cross-Complaint against Cross-Defendants Winson,

Ticor Title Company of California, and Roes 1 through 10, inclusive, asserting four causes of action: (1)-(2) Breach of Contract; (3) Declaratory Relief; and (4) Indemnity.

On April 21, 2025, Winson filed a general denial to the Cross-Complaint.

On March 5, 2026, the Court entered Default Judgment Quieting Title, Reforming Grant Deed, and Reserving Attorney's Fees.

On June 25, 2026, Winson filed the instant MJOP.

No opposition or reply has been filed.

Request for Judicial Notice

Winson requests judicial notice of the following:

(1) Default

Judgment Quieting Title, Reforming Grant Deed, and Reserving Attorney's Fees entered March 5, 2026 by the Honorable Lee W. Tsao in Winson International LLC v. Linares, et al., Los Angeles Superior Court Case No. 23NWCV01381.

(2) Order

signed April 2, 2026 appointing the Court Clerk as elisor to execute a Corrective Grant Deed in Case No. 23NWCV01381.

(3) Corrective

Grant Deed executed by the Court Clerk as elisor and recorded April 27, 2026 in the Official Records of the Los Angeles County Recorder as Document No. 20260297421.

The court GRANTS Plaintiffs' request for judicial notice. (Evid. Code § 452(d), (h); See *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23,37.)

Legal Standard

A defendant may move for judgment on the pleadings if (i) the court does not have jurisdiction of the subject of the cause of action alleged in the complaint, or (ii) the complaint does not state facts sufficient to constitute a cause of action alleged in the complaint. (Code Civ. Proc., § 438.) “The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer: We treat the pleadings as admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. We may also consider matters subject to judicial notice.” (Dunn v. County of Santa Barbara (2006) 135 Cal.App.4th 1281, 1298.)

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318 (Blank).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Ibid.)

Meet and Confer

Under Code of Civil Procedure section 439(a), the moving party shall meet and confer in person or by telephone with the party who filed the pleading to determine whether an agreement can be reached. (Code Civ. Proc., § 439, subd. (a).) The moving party shall file and serve a declaration concerning the parties meet and confer efforts. (Code Civ. Proc., § 439, subd. (a)(3))

On May 6, 2026, Winson's counsel attempted to contact Cross-Complainants by telephone to meet and confer regarding the intended MJOP, but the telephone number provided by Cross-Complainants was no longer in service. (Ip Decl., ¶ 3.) Counsel's office then sent a meet and confer email to the three email addresses provided by Cross-Complainants requesting that they dismiss the Cross-Complaint against Winson or participate in a meet and confer regarding the proposed motion. (Ibid.; Ex. A.) On the same date, counsel also sent a detailed meet and confer letter by certified mail requesting that Cross-Complainants voluntarily dismiss the Second and Third Causes of Action against Winson or

contact counsel to schedule a telephonic or Zoom conference regarding the intended motion. (Id. at ¶ 4, Exs. B-C.) The letter identified the legal deficiencies in the challenged causes of action, proposed dates for a conference, and requested a response by May 18, 2026. (Ibid.) As of June 25, 2026, Cross-Complainants had not responded to the email or letter, provided availability to meet and confer, or otherwise contacted counsel. (Id. at ¶ 5.)

The Court finds that the meet and confer requirement has been met.

Analysis

Winson moves for judgment on the pleadings on the grounds that: (1) the second cause of action fails because California statute forecloses the only theory the Cross-Complaint pleads; and (2) the third cause of action fails because there is no actual controversy left to declare.

Second Cause of Action: Breach of Contract

The elements of a breach of contract claim are: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damages. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Cross-Complainants

allege that Winson breached the parties' agreement by failing to properly convey the Property based on the APNs and by misrepresenting the APNs included in the sale. (Cross-Complaint ¶¶ 30-31.) However, Revenue and Taxation Code section 11911.1 expressly provides that parcel numbers are used only for administrative purposes, are not proof of title, and that no liability attaches for an error or omission in a parcel number. Accordingly, allegations that Winson breached the contract by misidentifying or conveying incorrect APNs, standing alone, cannot support a breach of contract claim.

The Cross-Complaint further alleges that Winson breached the agreement by

attempting to modify the property boundaries after the sale. However, subsequent to the filing of the Cross-Complaint, the Court entered a default judgment reforming the Grant Deed, quieting title, and ordering execution of a Corrective Grant Deed. (RJN Exs. 1-3.) The judgment further determined that the Grant

Deed did not express the parties' true agreement due to a mutual mistake, or a unilateral mistake known to Defendants, and reformed the deed nunc pro tunc to February 4, 2022. (RJN, Ex. 1.) Thus, the contractual rights underlying Cross-Complainants' breach of contract theory have already been adjudicated.

Accordingly, Winson's MJOP as to the second cause of action is GRANTED.

Third Cause of Action: Declaratory Relief

To state a claim for declaratory relief, the plaintiff must allege a proper subject of declaratory relief and an actual controversy involving justiciable questions relating to the party's rights or obligations. (See *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) A court may refuse declaratory relief where it is unnecessary or improper. (Code Civ. Proc., §1061.)

Here, the Cross-Complaint seeks a declaration concerning the parties' respective rights regarding ownership of the Property, the APN discrepancies, and correction of the property records. (Cross-Complaint

¶¶ 34-35.) However, the judicially noticed records establish that, after the Cross-Complaint was filed, the Court entered a default judgment quieting title and reforming the Grant Deed, subsequently appointed an elisor to execute the corrective deed, and the Corrective Grant Deed was thereafter recorded. (RJN, 1-3.)

Accordingly, the ownership interests, the parties' respective rights to the Property, and the operative legal description have already been determined by court order.

Because the judicially noticed records establish that the controversy identified in the Cross-Complaint has already been resolved, Cross-Complainants fail to allege an existing actual controversy that would support declaratory relief.

Accordingly,

Winson's MJOP as to the third cause of action is GRANTED.

Leave to

Amend

Here, the Court

finds no reasonable possibility that Cross-Complainants can cure the defects identified above. Moreover,

Cross-Complainants did not file an opposition to the instant motion or otherwise identify any additional facts they could allege to cure these defects. Under these circumstances, leave to amend is DENIED.

Conclusion

Based on the

foregoing, Plaintiff and Cross-Defendant Winson International LLC's unopposed motion for judgment on the pleadings as to the second and third causes of action asserted against it is GRANTED without leave to amend. The Cross-Complaint as to Cross-Defendant Winson is DISMISSED WITH PREJUDICE.